

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Bernardo Gutierrez	Team: Team # 5	CCRB Case #: 201208773	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Saturday, 07/07/2012 2:57 AM	Location of Incident: Detective Keith L. Williams Park	18 Mo. SOL 1/7/2014	Precinct: 103		
Date/Time CV Reported Sat, 07/07/2012 3:05 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Sat, 07/07/2012 3:05 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			103 PCT
2. POM Daniel Gukelberger	26809	948350	103 PCT
3. POM Bruno Mazza	27075	928732	103 PCT
4. POM Daniel Ward	21743	947596	103 PCT

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Off. Language: An officer made remarks to § 87(2)(b) based upon race.	A . Officer(s) Unidentified
B . POM Daniel Ward	Abuse: PO Daniel Ward threatened § 87(2)(b) with the use of force.	B . Unsubstantiated
C . POM Daniel Ward	Force: PO Daniel Ward struck § 87(2)(b) with a blunt instrument.	C . Unsubstantiated
D . POM Daniel Ward	Force: PO Daniel Ward used physical force against § 87(2)(b)	D . Unsubstantiated
E . POM Daniel Gukelberger	Force: PO Daniel Gukelberger used physical force against § 87(2)(b)	E . Unsubstantiated
F . POM Bruno Mazza	Force: PO Bruno Mazza used physical force against § 87(2)(b)	F . Unsubstantiated
G . POM Daniel Gukelberger	Force: PO Daniel Gukelberger used a chokehold against § 87(2)(b)	G . Unsubstantiated
H . An officer	Force: An officer struck § 87(2)(b) with a blunt instrument.	H . Officer(s) Unidentified
I . POM Bruno Mazza	Discourtesy: PO Bruno Mazza spoke rudely to § 87(2)(b)	I . Exonerated
J . POM Daniel Gukelberger	Discourtesy: PO Daniel Gukelberger spoke rudely to § 87(2)(b)	J . Exonerated

Case Summary

An anonymous complainant and § 87(2)(b) called IAB in regard to this incident on July 7, 2012, generating log number 12-36281 (encl. 2A-2C). On July 10, 2012, § 87(2)(b) filed this complaint with the CCRB over the telephone (encl. 3A-3D). The IAB complaint was received by the CCRB on July 13, 2012. On July 7, 2012, § 87(2)(b) was arrested inside of Detective Keith L. Williams Park in Queens. The following allegations resulted:

Allegation A- Offensive Language: An officer made remarks to § 87(2)(b) based upon race. § 87(2)(g), it is recommended that **allegation A be closed as officer(s) unidentified.**

Allegation B- Abuse of Authority: PO Daniel Ward threatened § 87(2)(b) with the use of force. § 87(2)(g), it is recommended that **allegation B be closed as unsubstantiated.**

Allegation C- Force: PO Daniel Ward struck § 87(2)(b) with a blunt instrument. § 87(2)(g), it is recommended that **allegation C be closed as unsubstantiated.**

Allegation D- Force: PO Daniel Ward used physical force against § 87(2)(b)

Allegation E - Force: PO Daniel Gukelberger used physical force against § 87(2)(b)

Allegation F - Force: PO Bruno Mazza used physical force against § 87(2)(b) § 87(2)(g), it is recommended that **allegations D through F be closed as unsubstantiated.**

Allegation G- Force: PO Daniel Gukelberger used a chokehold against § 87(2)(b) § 87(2)(g), it is recommended that **allegation G be closed as unsubstantiated.**

Allegation H- Force: An officer struck § 87(2)(b) with a blunt instrument. § 87(2)(g), it is recommended that **allegation H be closed as officer(s) unidentified.**

Allegation I- Discourtesy: PO Bruno Mazza spoke rudely to § 87(2)(b)

Allegation J- Discourtesy: PO Daniel Gukelberger spoke rudely to § 87(2)(b) § 87(2)(g), it is recommended that **allegations I and J be closed as exonerated.**

Results of Investigation

Civilian Statements

COMPLAINANT/WITNESS: ANONYMOUS COMPLAINANT

- *No information was obtained for this individual aside from his being a man.*

Statement to IAB

An anonymous man called IAB on July 7, 2012 (encl. 2A-2C). He reported observing officers chase an individual identified by the investigation as § 87(2)(b) through a park. An officer told § 87(2)(b) that he would shoot him in the back if he did not stop. An officer falsely accused § 87(2)(b) of reaching for his gun, when in reality § 87(2)(b) had laid on the ground with his arms behind his back. This officer punched § 87(2)(b) in the face.

COMPLAINANT/WITNESS: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) at the time of the incident, is a man of black and Hispanic descent. § 87(2)(b) refused to provide address information and stated that he is vaguely acquainted with § 87(2)(b)

Statements

On July 7, 2012, § 87(2)(b) called IAB and provided a statement (encl. 2A-2C). He did not provide his name when speaking to IAB but was identified as the person who called after relating to the CCRB that he had spoken to IAB. On August 8, 2012, § 87(2)(b) was called by telephone and he provided a statement (encl. 4B).

On July 7, 2012, at approximately 2:57 a.m., § 87(2)(b) was sitting on the porch of his residence (he refused to provide address information). He saw § 87(2)(b) running from three uniformed officers, including an officer he described as a white man with black hair, approximately 5'8" tall, approximately 180 pounds, in his 20's. The investigation identified this officer as PO Daniel Ward. § 87(2)(b) began to walk in the direction that § 87(2)(b) was running.

PO Ward told § 87(2)(b) that he would shoot him in the back if he did not stop and § 87(2)(b) stopped. PO Ward tackled § 87(2)(b) to the ground inside of Keith L. Williams Park. § 87(2)(b) stood by the outside of a fence leading inside the park. § 87(2)(b) had been accompanied by another individual, whose identity he did not wish to reveal to the CCRB.

Once on the ground, an officer placed one arm behind § 87(2)(b)'s back and officers placed their knees on his back. § 87(2)(b) was not resisting. § 87(2)(b) stated that he was giving up and that he could not breathe. PO Ward punched § 87(2)(b) with a closed fist five times in the face. § 87(2)(b) related that the sounds of the punches could be heard in the video that he took. One officer was positioned behind § 87(2)(b) who was face down, and was holding a forearm around his neck. § 87(2)(b) was unsure if the officer who had been holding § 87(2)(b) around his neck was the same officer who had punched him. Other officers responded to the scene and told § 87(2)(b) to leave the area. § 87(2)(b) complied. He did not see when § 87(2)(b) was handcuffed, but observed as he was being placed inside a vehicle

§ 87(2)(b) was contacted by telephone five times between August 8, 2012, and September 11, 2012. He agreed to call the undersigned back in regard to providing a sworn statement on August 8, 2012, and August 17, 2012. Voicemails were left with the remaining calls. As he did not wish to provide address information, no letters were sent. § 87(2)(b) has not contacted the CCRB as of the date this report was written.

COMPLAINANT/VICTIM: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) *at the time of the interview, is a black man who is 5'7" tall, weighs 210 pounds, and has black hair and brown eyes.* § 87(2)(b)

CCRB Testimony

On July 10, 2012, § 87(2)(b) filed this complaint with the CCRB over the telephone (encl. 3A-3D). He provided a statement to IAB on July 10, 2012 (encl. 2A-2C). § 87(2)(b) provided a telephone statement on July 13, 2012 (encl. 3E). He provided a sworn statement on July 27, 2012 (encl. 3F-3J). § 87(2)(b) filed a Notice of Claim with the City of New York on § 87(2)(b) (encl. 11A-11C). § 87(2)(g)

On July 7, 2012, at approximately 2:57 a.m., § 87(2)(b) was inside of Detective Keith L. Williams Park in Queens. § 87(2)(b) had fallen asleep on a bench while waiting for a friend. § 87(2)(b) was awoken by someone saying "Hey." § 87(2)(b) saw approximately four uniformed white officers standing approximately six feet away from him. One of the officers said, "Trayvon Martin, get the fuck over here." He was unable to see which of the officers made this statement. This frightened § 87(2)(b) and he began to flee along a running track inside the park. He heard an officer say, "Stop running before we shoot you in your back."

After running approximately 80 feet, § 87(2)(b) tripped and fell next to a set of bleachers. As he was falling, he felt an officer strike him on the back of his head with an edged object. Upon falling, § 87(2)(b) attempted to get up but was tackled to the ground. § 87(2)(b) was on his stomach at this point and he felt officers striking him from every direction. He was punched and elbowed in his face an undetermined amount of times. § 87(2)(b) attempted to block the blows by placing his hands and forearms by the sides of his head and officers attempted to pull his hands behind his back. He repeatedly tried to get up off of the ground. In his initial telephone statement, he stated that he held on to an unidentified officer's hand as this officer was about to punch him and that another officer punched him in the face, causing him to fall back onto the ground. He did not mention this occurring in his other statements.

An officer described by § 87(2)(b) as a white male that was approximately 6'2" tall, with a stocky build, in his mid-30's with tattoos on one of his forearms held his right forearm around § 87(2)(b)'s neck. He was unable to provide descriptions for the other officers aside from their being white males. This action caused § 87(2)(b)'s breathing to be restricted for approximately ten seconds. In his initial telephone statement, § 87(2)(b) stated that this officer had been the one who prepared his arrest paperwork. The investigation identified this officer as PO Daniel Gukelberger. In his first and second telephone statements, § 87(2)(b) attributed several punches to PO Gukelberger.

Officers on either side of him placed his hands behind his back and handcuffed him. After he was handcuffed, he felt himself be punched in his eye area. He did not mention being struck after being handcuffed in his second telephone statement. Officers kicked him on both sides of his ribs, and stomped on his lower middle back several times. § 87(2)(b) felt himself be struck on the top left crown of his head with an edged object. An officer held § 87(2)(b)'s right ankle and twisted it. § 87(2)(b) was placed inside a black Chevrolet Impala and was taken from the scene.

§ 87(2)(b) was released from custody two days later. Upon release, he went to § 87(2)(b) and went to his private doctor, § 87(2)(b) the day after. He sustained a cut to the top left side of his head that did not require stitches, swelling and a burst blood vessel on his left eye, cuts on his wrists from the handcuffs, a sprained knee which required crutches, a back injury the details of which § 87(2)(b) was unable to specify and soreness to both sides of his ribs. § 87(2)(b) complained of not being able to see out of his left eye.

Photographs

§ 87(2)(b) provided seven photographs for the investigation. The photographs were taken at § 87(2)(b) on July 9, 2012 (encl. 3L-3S):

Photo 1: Depicts § 87(2)(b) with a bloodshot and swollen left eye. § 87(2)(b) attributed this to either his being punched or being held in a headlock.

Photo 2: Depicts § 87(2)(b)'s bloodshot left eye.

Photo 3: Depicts a cut § 87(2)(b) sustained over his right eyelid.

Photo 4: Depicts missing hair on the top left side of § 87(2)(b)'s scalp, caused by his being struck with an object.

Photo 5: Depicts a cut on § 87(2)(b)'s left elbow, caused by his making contact with the ground.

Photo 6: Depicts marks to § 87(2)(b)'s right knee, caused by his making contact with the ground.

Photo 7: Depicts cut to § 87(2)(b)'s left wrist, caused by the handcuffs.

Witness: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) *at the time of the incident, is a black woman. § 87(2)(b) resided at § 87(2)(b) § 87(2)(b) in Queens. § 87(2)(b) provided § 87(2)(b)'s contact information. § 87(2)(b) is a friend of § 87(2)(b)'s.*

Telephone Statement

On August 8, 2012, § 87(2)(b) provided a telephone statement (encl. 4A). On July 7, 2012, at approximately 2:57 a.m., § 87(2)(b) was at a store close to the incident location. § 87(2)(b) informed her that § 87(2)(b) was being beat up. § 87(2)(b) and § 87(2)(b) went inside the park and stood approximately three car lengths away from § 87(2)(b) who was face down on the ground. A large number of officers, some in uniform and some in plainclothes, were surrounding § 87(2)(b).

The officers were placing handcuffs on § 87(2)(b) as § 87(2)(b) and § 87(2)(b) approached. After he was handcuffed, four or five officers kicked § 87(2)(b) on his back area. More than one officer elbowed § 87(2)(b) but was unable to see where he was being elbowed, due to the poor lighting. § 87(2)(b) asked the officers what they were doing and an officer replied that § 87(2)(b) was resisting. The officers placed § 87(2)(b) inside a vehicle.

§ 87(2)(b) contacted the CCRB by telephone on August 8, 2012, and provided a statement. She was scheduled to provide a sworn statement on August 28, 2012. She missed this appointment without calling to cancel or reschedule. Two additional calls made on August 28, 2012, and September 11, 2012, showed that the number had been changed, disconnected or not in service. On October 4, 2012, a female answered the telephone and stated that the undersigned had dialed the wrong number. § 87(2)(b) was sent two letters between August 8, 2012, and August 28, 2012, which were not returned by United States Postal Service. § 87(2)(b) has not contacted the CCRB as of the date this report was written.

Witness: § 87(2)(b)

- § 87(2)(b) *did not provide any pedigree information. She resided at § 87(2)(b) § 87(2)(b) in Queens. She is a friend of § 87(2)(b)'s.*

Telephone Statement

On August 23, 2012, § 87(2)(b) provided a telephone statement (encl. 4C). On July 7, 2012, at approximately 2:57 a.m., § 87(2)(b) was standing on the corner of 173rd Street and 105th Avenue in Queens. § 87(2)(b) suddenly noticed § 87(2)(b) walking in her direction from the inside of Keith L. Williams park from the direction of 104th Avenue.

Officers in a van and three marked vehicles responded to the scene. Five out of an undetermined number of officers approached § 87(2)(b). Multiple officers took § 87(2)(b) to the ground and put knees on his back. Four of the officers punched him on the sides of his face. § 87(2)(b) screamed in response and did not do anything aside from lying on the ground. § 87(2)(b) arrived on the scene as § 87(2)(b) was being placed inside a police vehicle. Officers told § 87(2)(b) and § 87(2)(b) that they would be arrested if they did not get away. § 87(2)(b) was called by telephone on August 23, 2012, and was scheduled to provide a statement on August 28, 2012. She missed her appointment on this date without calling to cancel or reschedule. She was rescheduled for September 12, 2012, and also missed this appointment without calling to cancel or reschedule. § 87(2)(b) was sent two letters between August 23, 2012, and March 8, 2013, which were not returned by United States Postal Service. § 87(2)(b) has not contacted the CCRB as of the date this report was written.

Attempts to Contact Civilians

A telephone number and address that did not correspond to § 87(2)(b) was provided with the IAB log. Contact attempts were made in case the information belonged to the anonymous caller. The listed telephone number was found to be out of service. Two letters were sent to the listed address between July 25, 2012, and August 10, 2012. These letters were not returned by United States Postal Service. COLES and Lexis Nexis searches for the address yielded four telephone numbers. Two numbers were found to be out of service and the other two numbers were called on August 10, 2012, and August 17, 2012, respectively. The calls were not answered and there was no prompt to leave a voicemail message. No one else has contacted the CCRB in regard to witnessing this incident as of the date this report was written.

NYPD Statements:

Subject Officer: PO DANIEL GUKELBERGER

- *PO Gukelberger, § 87(2)(b) old at the time of the incident, is a white man who § 87(2)(b) has brown hair and brown eyes.*
- *On July 7, 2012, PO Gukelberger was assigned to conditions duty in uniform from 8:00 p.m. to 4:35 a.m. He was partnered with PO Ward and PO Mazza and was assigned to marked van 8670.*

Memo Book

At 2:50 a.m., a man was stopped at 173rd Street and 106th Avenue inside of a park. The man fled on foot, punched PO Ward in the face and bit him in his right hand. The man violently resisted arrest and was found to be in possession of two bags of a controlled substance in his left front pants pocket (encl. 5A-5C).

UF-61 and Online Booking Sheet

§ 87(2)(b) was arrested after being discovered in a park after its closing time and fleeing from officers. He struck PO Ward in the face with a closed fist and bit his right hand. § 87(2)(b) resisted arrest (encl. 5D-5G).

AIDED and Line of Duty Report Witness Statements

PO Gukelberger stated that PO Ward was struck in the right side of his face with a closed fist and was bitten on his right hand, causing multiple lacerations (encl. 5H-5I).

CCRB Testimony

On August 29, 2012, PO Gukelberger was interviewed at the CCRB (encl. 5J-5L). On July 7, 2012, at approximately 2:57 a.m., PO Ward observed § 87(2)(b) inside of Keith L. Williams Park and alerted the other officers. § 87(2)(b) was seated on a bench. The park closes after 9 p.m. The officers began to approach § 87(2)(b). PO Ward identified himself as a police officer. No officer said, "Trayvon Martin, get the fuck over here."

§ 87(2)(b) began to flee northbound across the park. PO Gukelberger could not recall if any officer said, "Stop running before we shoot you in your back." As § 87(2)(b) approached a hip-height fence next to a running track, he fell face-down. PO Ward was the first officer to reach § 87(2)(b). § 87(2)(b)

PO Ward fell on top of § 87(2)(b) and they began to struggle. PO Gukelberger could not recall if any officer struck § 87(2)(b) with any object as he was falling to the ground. § 87(2)(b) attempted to stand as he struggled with PO Ward. At this point, PO Gukelberger arrived and attempted to put § 87(2)(b) in handcuffs. PO Mazza arrived seconds after and attempted to restrain § 87(2)(b).

§ 87(2)(b) resisted arrest by flailing his arms and kicking his legs. § 87(2)(b)'s position changed multiple times during the incident and he was not face-down for its entirety. PO Gukelberger could not specify the ways in which his positioned changed. At one point, § 87(2)(b) was kneeled in front of PO Gukelberger and he began to un-strap the case for PO Gukelberger's gun.

PO Gukelberger could not recall if any officer used strikes against § 87(2)(b) to obtain compliance. No officer kicked or stomped on § 87(2)(b). He was not struck on his head on his object by any officer. No officer twisted § 87(2)(b)'s ankle to obtain compliance. PO Gukelberger could not recall if he held § 87(2)(b) around the neck and was unsure if any officer made contact with his neck. PO Gukelberger placed a call for assistance over the radio. Once he did so, § 87(2)(b) began to give up fighting and was restrained. He could not recall if § 87(2)(b) was struck at any point after he was handcuffed or if officers other than his partners assisted in the arrest.

PO Ward went to the hospital in regard to bite marks he sustained. PO Gukelberger came to learn after the incident that PO Ward was bitten on a hand but was unsure of when exactly, this would have happened. PO Gukelberger was shown Photo 1, depicting § 87(2)(b)'s bloodshot left eye. He attributed the injury to the general struggle but could not specify a particular action that would have caused it. He could not recall if any officer struck him on his left eye. PO Gukelberger could not account for the cause of the injuries alleged by § 87(2)(b).

PO Gukelberger was shown Video Clip 2. He could not account for the source of the sound of a hard object making contact with a surface at the beginning of the video. He could not recall if he said, "Give us your fucking hands" or identify who did. He was shown Video Clip 3. He could not account for who would have said, "Shut the fuck up." He could not recall making this statement.

Subject Officer: PO BRUNO MAZZA

- *PO Mazza § 87(2)(b) old at the time of the incident, is a white man who § 87(2)(b) has brown hair and brown eyes.*
- *On July 7, 2012, PO Mazza was assigned to a conditions team in uniform from the hours of 8:00 p.m. to 4:35 a.m. PO Mazza was partnered with Officers Gukelberger and Ward and was assigned to marked van 8676.*

Memo Book

At 3:00 a.m., an arrest was made at 173rd Street and 104th Avenue. PO Mazza returned to the stationhouse to process an arrest made by PO Gukelberger. At 4:00 a.m., PO Mazza transported PO Ward to § 87(2)(b) (encl. 6A-6D).

CCRB Testimony

On September 20, 2012, PO Mazza was interviewed at the CCRB (encl. 6E-6G). § 87(2)(g) On July 7, 2012, at approximately 2:57 a.m., the officers noticed § 87(2)(b) sitting alone inside of Keith L. Williams Park. PO Ward did not say, “Trayvon Martin, get the fuck over here” and did not hear any officer make this statement. PO Mazza did say, “Stop running before we shoot you in the back.” He did not hear any officer say this.

When PO Mazza caught up to the group, § 87(2)(b) was on the ground by a running track. He did not see how § 87(2)(b) had fallen on the ground. He did not see any officer strike him with an object as he fell and he did not do so. § 87(2)(b) was wrestling with PO Ward and PO Gukelberger. § 87(2)(b) who was face down, was moving his arms, punching and kicking his legs. PO Mazza positioned himself by § 87(2)(b)'s legs. PO Mazza could not recall any officer twisting his ankles and he did not do so. He did not see any officer strike § 87(2)(b) with object on his head and he did not do so.

PO Mazza did not strike him by punching or elbowing him and could not recall if any other officer did. PO Mazza did not kick or stomp on him and neither did any of the other officers. PO Mazza did not see any officer make contact or pressure with § 87(2)(b)'s head or neck area and he did not do so. After § 87(2)(b) was handcuffed, PO Ward stated that he had been bitten. § 87(2)(b) was not struck at any point after being handcuffed.

PO Mazza was shown Photo 1. He could not account for what would have caused this injury. PO Mazza could not account for the cause of the injuries found on § 87(2)(b) by § 87(2)(b). PO Mazza was shown Video Clip 2. He could not account for what would have caused the sound of a hard object making contact with a surface at the beginning. He did not know who said, “Give us your fucking hands.” PO Mazza was shown Video Clip 3. PO Mazza could not account for who would have said, “Shut the fuck up.”

Subject Officer: PO DANIEL WARD

- *PO Ward, § 87(2)(b) old at the time of the incident, is a white man who § 87(2)(b) has black hair and brown eyes.*
- *On July 6, 2012, PO Ward was assigned to conditions in uniform from the hours of 8:00 p.m. to 4:35 a.m. He was partnered with Officers Gukelberger and Mazza, and was assigned to marked van 8672.*

Memo Book

At 3:00 a.m., a male was stopped at 172nd Street and 103rd Avenue. PO Ward was taken to § 87(2)(b) after being bitten in the right hand and punched in the right side of his forehead (encl. 7A-7B).

CCRB Testimony

PO Ward was interviewed at the CCRB on September 28, 2012 (encl. 7C-7E). § 87(2)(g) On July 6, 2012, at approximately 2:57 a.m., PO Ward observed § 87(2)(b) inside of Keith L. Williams Park. None of the officers made reference to § 87(2)(b)'s race and ethnicity, and did not say, “Trayvon Martin, get the fuck over here.” None of the officers told § 87(2)(b) that he could be shot in the back if he continued to run. No officer struck § 87(2)(b) with an object upon his falling. § 87(2)(b) turned onto his backside right after falling and PO Ward attempted to grab on to § 87(2)(b)'s hands. The other officers were

still running to catch up to PO Ward and § 87(2)(b) at this point. As PO Ward leaned over § 87(2)(b), § 87(2)(b) swung at him and punched him once on the forehead. He was unsure if any of the other punches made contact with him. When asked how he responded to being punched, PO Ward first stated that he continued to hold the male's arms in order to avoid being struck by additional punches.

Upon being asked later in the interview if he used any closed fist strikes, he stated that he may have done so while struggling alone with § 87(2)(b). He could not approximate the number of times that he would have struck him. When asked where on § 87(2)(b)'s body the strikes would have landed, he stated that he was unsure. When asked later in the interview if he had used any elbow strikes, he stated that he also may have done so during this same period. Any strikes used were done in self-defense.

Officers Mazza and Gukelberger arrived to assist PO Ward approximately ten seconds after his making contact with § 87(2)(b). PO Gukelberger arrived along one of § 87(2)(b)'s sides and grabbed his arms. PO Ward rolled § 87(2)(b) onto his stomach by making contact with one of his arms. Once § 87(2)(b) was on his stomach, PO Ward was positioned next to one of his shoulders. He could not recall on which side. PO Gukelberger was positioned next to § 87(2)(b)'s other shoulder. A handcuff was placed on one of § 87(2)(b)'s wrists, but he pulled his free arm in front of himself. § 87(2)(b) also resisted by punching and kicking. PO Ward attempted to pull § 87(2)(b)'s free arm behind his back and § 87(2)(b) bit him over his right pinky knuckle.

PO Ward was unsure if his partners used closed-fist against § 87(2)(b) to overcome his resistance. He stated that he did not know if they used elbow strikes against him. PO Ward did not see any officer making physical contact with § 87(2)(b)'s head or neck. He did not hold an arm around § 87(2)(b)'s neck. He was unaware of any officer twisting either one of § 87(2)(b)'s legs. None of the officers kicked or stomped on § 87(2)(b). § 87(2)(b) was not struck with any object while he was face down on the ground. He was not struck after being handcuffed. § 87(2)(b) was handcuffed after approximately a minute and-a-half. PO Ward went to § 87(2)(b) and filed a line of duty report.

PO Ward was shown Photo 1 which shows § 87(2)(b)'s bloodshot left eye. He could not account for what would have caused this injury. When asked if he had ever punched § 87(2)(b) in the eye, he replied, "Possibly." PO Ward stated that the injuries found for § 87(2)(b) by Dr. § 87(2)(b) could have been sustained during the incident, but could not attribute the injuries to a single part of the incident.

PO Ward was shown Video Clip 2. He could not account for what would have caused the sound of the hard object making contact with a surface at the beginning of the video. He attributed the statement, "Stop resisting, give us your fucking hands" to PO Mazza. PO Ward was shown Video Clip 3. He stated that "Shut the fuck up" was possibly said by PO Gukelberger.

NYPD Documents

SPRINT Report § 87(2)(b)

At 2:50 a.m., an officer assigned to conditions requests an additional unit. At 2:51 a.m., anti-crime and sector A officers arrive to the scene. Officers from sector H transport one individual to the stationhouse at 2:57 a.m. (encl. 8A-8C).

Roll Call

Officers Gukelberger, Mazza and Ward are assigned to conditions in vehicle 8672 (encl. 8D).

Command Log

§ 87(2)(b) was brought into the stationhouse at 3:00 a.m. He is noted to have pain in his ribs and a bloodshot left eye (encl. 8E).

Medical Treatment of Prisoner Form

There was no Medical Treatment of Prisoner Form on file at the 103rd Precinct or Queens Court Section (encl. 15F-15G).

Arrest Photograph

§ 87(2)(b) has a bloodshot left eye (encl. 3K).

AIDED and Line of Duty Report

As PO Ward was attempting to place someone under arrest, he was struck with a closed fist on the right side of his face, causing pain, redness and swelling. He was also bitten on his right hand, causing multiple lacerations and pain. § 87(2)(b) (8F-8L).

Medical Records

§ 87(2)(a) PHL § 18(6)

[REDACTED]

Additional Evidence

Video Footage

On August 6, 2012, § 87(2)(b) provided three separate video clips taken of the incident by § 87(2)(b) (encl. 3T). The videos are in IA's 44 through 46:

Video Clip 1:

The video begins with a view of a metal railing beyond which only a distant light can be seen. Someone is heard saying "You ain't getting away, bro." A muffled voice can be heard saying "I can't breathe." Someone says "Stop resisting" and another individual says, "We're not letting go 'till you let go." A voice says "One last time, give those hands up." A young male can be heard behind the camera. This male is accompanied by a dark skinned individual wearing a white t-shirt, and grey sweatpants with green and yellow vertical stripes running along the outer sides. His face cannot be seen. The individual holding the camera walks closer toward the metal railing. A tree can be seen towards his left. A group of officers, only two of whom can be clearly seen, are suddenly illuminated by a flashlight behind them and can be seen kneeling on the ground. An individual's lower legs and feet can be seen next to these officers. This group of individuals are approximately twenty feet from the cameraman's position. The voice of an older male next to the camera can be heard remarking that officers were accusing someone of resisting although the person is not. Individuals repeatedly tell someone to stop resisting and provide his other hand.

Video Clip 2:

Only darkness can be seen in the beginning of the video. A sound resembling a hard object hitting a surface can be heard twice. The camera's light is turned on. An individual to the camera's immediate right can be briefly seen holding both arms over a metal railing. This individual is wearing a yellow t- shirt. A male voice in distress appears to yell, "stop." A hard object can be heard striking something and the same voice can be heard screaming. The same voice says, "I cannot breathe" and another voice says "Stop resisting, give us your fucking hands." Another voice loudly orders the male to stop resisting. All that can be seen at this point is a distant light, possibly a flashlight laying on the ground. The voice that had been screaming gives another muffled scream and someone asks "You guys let go?" before the video ends.

Video Clip 3:

Only distant lights can be seen aside from darkness. The young male next to the camera can be heard saying "Ass with the flashlight." It is unclear if he said anything before this. Someone says, "mace him, mace him" and another voice says, "no." The individual who has been screaming yells "record just press record" and someone says "shut the fuck up, give your hands up." The individual says "just press record" again. The individual's voice is affected, with his airway possibly being restricted as he continues to ask for the event to be recorded. As the video is coming to an end, the voice says "You got me." His voice is affected, his airway possibly restricted, as this is said.

Arrests For Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]

Status of Civil Proceeding

- [§ 87(2)(b)] filed a Notice of Claim with the City of New York on [§ 87(2)(b)] (encl. 11A-11C). [§ 87(2)(b)] had not participated in a 50-H hearing as of March 4, 2013.

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian CCRB History

- This is the first CCRB complaint with [§ 87(2)(b)] as a party (encl. 1D).
- [§ 87(2)(b)] was involved in the following CCRB case (encl. 1E).
 - [§ 87(2)(b)] [REDACTED]
[REDACTED]

Subject Officers CCRB History

- PO Ward has been a member of the service for four years with no substantiated allegations made against him (encl. 1A).
- PO Gukelberger has been a member of the service for three years with no substantiated allegations made against him (encl. 1B).

- PO Mazza has been a member of the service for 11 years with no substantiated allegations made against him (encl. 1C).

Conclusion

Identification of Subject Officers

§ 87(2)(b) alleged that an officer who he was unable to see said, “Trayvon Martin, get the fuck over here.” § 87(2)(g)

§ 87(2)(b) stated that one of the officers threatened to shoot him in the back. § 87(2)(b) stated that the first officer to catch up to § 87(2)(b) made this threat. § 87(2)(b) described this officer as a white male with black hair, approximately 5’8” tall, approximately 180 pounds, in his 20’s. PO Ward is § 87(2)(b) and was § 87(2)(g) at the time of the incident. § 87(2)(g)

§ 87(2)(b) stated that as he was in the process of falling to the ground, an officer struck him on the head with an edged object. § 87(2)(g)

§ 87(2)(b) stated that the same officer who prepared his arrest paperwork held a forearm around his neck, restricting his breathing for approximately ten seconds. He described the officer as a white male with tattoos over one of his forearms, approximately 6’2” tall, with a stocky build, in his mid-30’s. PO Gukelberger is § 87(2)(b). He also has a tattoo over his right bicep. § 87(2)(g)

§ 87(2)(b) alleged that he felt himself be struck on the crown of his head with an edged object after being handcuffed. § 87(2)(g)

Allegations not Pleaded

In his statement to IAB, § 87(2)(b) alleged that an officer at the 103rd Precinct stationhouse told him to “Get the fuck out of the precinct.” As § 87(2)(b) did not repeat this allegation when speaking to the CCRB, this allegation has not been pleaded. § 87(2)(g)

Allegation A- Abuse of Authority: An officer made remarks to § 87(2)(b) based upon race.

§ 87(2)(b) alleged that an officer said, “Trayvon Martin, get the fuck over here.” He did not see which officer made the statement. § 87(2)(g)

it is recommended that **allegation A be closed as officer(s) unidentified.**

Allegation B- Abuse of Authority: PO Daniel Ward threatened § 87(2)(b) with the use of force.

§ 87(2)(b) stated that as he ran from officers, he heard an officer state that he would shoot him in the back if he did not stop. § 87(2)(b) attributed this statement to the first officer who caught up to § 87(2)(b) identified by the investigation as PO Ward. The anonymous caller also stated that an officer had threatened to shoot § 87(2)(b) during his telephone statement to IAB. PO Ward and PO Mazza denied any of the officers threatening to shoot § 87(2)(b). PO Gukelberger stated that he could not recall if any officer threatened to shoot § 87(2)(b).

§ 87(2)(g)

§ 87(2)(b), it is recommended that **allegation B be closed as unsubstantiated.**

Allegation C- Force: PO Daniel Ward struck § 87(2)(b) with a blunt instrument.

§ 87(2)(b) alleged that as he was in the process of falling, he felt himself be struck on the back of the head with an edged object. This force was attributed to PO Ward, who was the first officer to catch up to § 87(2)(b). None of the witnesses mentioned this occurring. PO Ward denied striking § 87(2)(b) with any object during the incident. § 87(2)(g)

§ 87(2)(b), it is recommended that **allegation C be closed as unsubstantiated.**

Allegation D- Force: PO Daniel Ward used physical force against § 87(2)(b)

Allegation E - Force: PO Daniel Gukelberger used physical force against § 87(2)(b)

Allegation F - Force: PO Bruno Mazza used physical force against § 87(2)(b)

§ 87(2)(b) stated that as he lied on his stomach after falling, he felt multiple officers punch and elbow him in the face and that he tried to get up in response to this. He further alleged that after being handcuffed, he felt himself be punched in his eye area, kicked in his ribs, stomped on his lower middle back, and had his right leg twisted in a lock. § 87(2)(b)'s arrest photograph does not show any injuries aside from a bloodshot left eye. § 87(2)(b)'s medical records showed that he was diagnosed with blurred vision and bruising to his left eye, a laceration to the top of his head that did not require stitches and pain in his rib and jaw.

§ 87(2)(b) stated that he observed multiple officers place their knees on § 87(2)(b)'s back after he was tackled to the ground and saw PO Ward punch him five times in the face. § 87(2)(b)

§ 87(2)(b) stated that after § 87(2)(b) was handcuffed, multiple officers kicked him on his back.

§ 87(2)(b) described the only force used against § 87(2)(b) as four officers punching him on the sides of his face.

Officers Mazza and Gukelberger stated that they could not recall if other officers used punches to obtain compliance from § 87(2)(b). PO Gukelberger could not recall if he used strikes and PO Mazza denied using them. PO Ward stated that he could have possibly used punches and elbows in self-defense, upon being punched in the forehead. He was unable to specify how many punches he would have thrown or where the punches would have landed. PO Ward filed a Line of

Duty Report in regard to being injured during this incident after being bitten on his right hand and punched in his forehead.

All of the officers denied any officer kicking or stomping on § 87(2)(b) PO Gukelberger denied any officer twisting his ankle. PO Mazza could not recall observing an officer twist § 87(2)(b)'s ankle and he denied doing so. PO Ward was unaware of any officer having twisted § 87(2)(b)'s ankle. All of the officers stated that § 87(2)(b) resisted arrest by flailing his arms and kicking his legs. Officers Mazza and Ward denied § 87(2)(b) being struck after being handcuffed. PO Gukelberger could not recall if § 87(2)(b) was struck at any point after being handcuffed.

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **allegations D through F be closed as unsubstantiated.**

Allegation G- Force: PO Daniel Gukelberger used a chokehold against § 87(2)(b)

§ 87(2)(b) alleged that as he was being placed in handcuffs, an officer identified by the investigation as PO Gukelberger held an arm around his neck, causing his breathing to be restricted for about ten seconds. Witness § 87(2)(b) stated that he saw an officer place a forearm around § 87(2)(b)'s neck. PO Gukelberger stated that he could not recall if he had held § 87(2)(b) around his neck. Officers Mazza and Ward denied doing so. § 87(2)(g)

§ 87(2)(b), it is recommended that **allegation G be closed as unsubstantiated.**

Allegation H- Force: An officer struck § 87(2)(b) with a blunt instrument.

§ 87(2)(b) alleged that after he was handcuffed, he felt himself be struck on the crown of his head with an edged object. None of the witnesses mentioned this occurring. None of the officers admitted to striking § 87(2)(b) with an object on his head during the incident. § 87(2)(g) It is therefore recommended that **allegation H be closed as officer(s) unidentified.**

Allegation I- Discourtesy: PO Bruno Mazza spoke rudely to § 87(2)(b)

Allegation J- Discourtesy: PO Daniel Gukelberger spoke rudely to § 87(2)(b)

§ 87(2)(g) an officer can be heard saying, “Stop resisting, give us your fucking hands” in Video Clip 2 and “Shut the fuck up, give your hands up” in Video Clip 3. PO Ward identified the voice of the officer in Video Clip 2 as belonging to PO Mazza. PO Mazza denied who made this statement. PO Ward identified the voice of the officer in Video Clip 3 as possibly belonging to PO Gukelberger, who also denied knowing who made this statement.

Officers involved in stressful street encounters have not been found guilty of misconduct when discourteous language has been used to maintain control of a situation. NYPD v. Court (2004) (encl. 0A-0J).

§ 87(2)(g)

_____ it is recommended that **allegations I and J** be closed as **exonerated**.

Team: 5

Investigator: _____	Bernardo Gutierrez	3/19/13
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date